

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Tyrone Gardner, Gregory Wortham, Vernon Halsey,
Dwyane Bradley and Tony Ledbetter,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer Christopher Case, Shield 19334 of the 114
Precinct, Police Officer Patrick O'Brien, Shield 27549 of
the 114 Precinct and New York City Police Officers John
Doe,

Defendants

:
:
: Index Number:
: Date Purchased:
: Date Filed:

: SUMMONS

:
:
: Plaintiff Gardner's
: residence is:
: 4-10 27th Avenue
: Astoria, NY 11102

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: April 29, 2021
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Christopher Case, Shield 19334 of the 114 Precinct

Police Officer Patrick O'Brien, Shield 27549 of the 114 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Tyrone Gardner, Gregory Wortham, Vernon Halsey, Dwyane Bradley and Tony Ledbetter,	:
	:
Plaintiffs	VERIFIED COMPLAINT
	:
-against-	:
	:
City of New York, New York City Police Department, Police Officer Christopher Case, Shield 19334 of the 114 Precinct, Police Officer Patrick O'Brien, Shield 27549 of the 114 Precinct and New York City Police Officers John Doe,	:
	:
	:
Defendants	
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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Tyrone Gardner, (hereinafter referred to as "GARDNER") is a resident of Queens County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Gregory Wortham, (hereinafter referred to as "WORTHAM") is a resident of Queens County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Vernon Halsey, (hereinafter referred to as "HALSEY") is a resident of Queens County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Dwayne Bradley, (hereinafter referred to as "BRADLEY") is a resident of Lexington County, State of South Carolina.

5. That at all times hereinafter mentioned, Plaintiff Tony Ledbetter, (hereinafter referred to as “LEDBETTER”) is a resident of Queens County, State of New York.

6. That at all times hereinafter mentioned, Police Officer Christopher Case, Shield 19334 of the 114 Precinct (hereinafter referred to as “CASE”) was employed by the New York City Police Department.

7. That at all times hereinafter mentioned, Police Officer Patrick O’Brien, Shield 27549 of the 114 Precinct (hereinafter referred to as “O’BRIEN”) was employed by the New York City Police Department.

8. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

9. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

10. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

11. On or about June 17, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service for GARDNER. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.

12. On or about December 2, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service for WORTHAM, HALSEY, BRADLEY and LEDBETTER. Said notices set forth the facts underlying Plaintiffs’ claim against the City of New York, and its

agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.

13. That on or about December 23, 2020, a hearing required by Municipal Law 50-H was held as to all Plaintiffs. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

14. That on or about April 16, 2020 at approximately 3:30PM in the vicinity of 8-07 Astoria Avenue, Queens, NY Plaintiffs were waiting outside of a local eatery, after having ordered food, when CASE, O'BRIEN and DOES stopped, handcuffed and arrested GARDNER, WORTHAM, HALSEY, BRADELY and LEDBETTER.

15. That at no time were any of the Plaintiffs engaged in any criminal or unlawful activity.

16. That at no time were Plaintiffs disobeying social distancing requirements set forth by the State of New York.

17. That at no time were Plaintiffs in possession, nor did they exercise custody and control over a weapon.

18. That after Plaintiffs were arrested, they were transported to the 114 police precinct.

19. That while Plaintiffs were inside of the 114 precinct, they were held in a holding cell occupied with other males for several hours.

20. That after several hours each Plaintiff was released with a Desk Appearance Ticket that failed to specify what they had each been charged with.

21. That on a date prior to the arraignment of each Plaintiff, the Office of the Queens County District Attorney declined to prosecute the arrest of each Plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.
23. That Defendants acted with actual malice toward Plaintiff GARDNER and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
25. That as a result of the actions by Defendants, Plaintiff GARDNER was traumatized and fears his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.
26. That as a result of the Defendants' actions, Plaintiff GARDNER has been unable to sleep.
27. That as a result of the Defendants' actions, Plaintiff GARDNER missed several days of school.
28. That as a result of the Defendants' actions, Plaintiff GARDNER missed several days of work.
29. That as a result of the Defendants' actions Plaintiff GARDNER sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff GARDNER as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

32. Defendants having no lawful authority to arrest Plaintiff GARDNER, did, nevertheless, unlawfully arrest Plaintiff GARDNER with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff GARDNER is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Defendants conspired to violate Plaintiff GARDNER's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff GARDNER is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Plaintiff GARDNER was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GARDNER to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff GARDNER by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff GARDNER. Plaintiff GARDNER is thus entitled to compensatory and exemplary damages.

37. That during the pendency of the case, Defendants maliciously prosecuted GARDNER by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. GARDNER is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. At all times pertinent hereto, CASE, O'BRIEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

40. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CASE, O'BRIEN and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GARDNER. Plaintiff GARDNER is thus entitled to compensatory exemplary damages.

43. That City of New York and New York City Police Department were aware that CASE was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ CASE.

44. That City of New York and New York City Police Department were aware that O'BRIEN was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ O'BRIEN.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

45. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GARDNER.

47. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GARDNER.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

48. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47. as if more fully stated herein at length.

49. That Defendants acted with actual malice toward Plaintiff WORTHAM and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff WORTHAM.

50. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

51. That as a result of the actions by Defendants, Plaintiff WORTHAM was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

52. That as a result of the Defendants' actions, Plaintiff WORTHAM has been unable to sleep.

53. That as a result of the Defendants' actions, Plaintiff WORTHAM was forced to miss multiple days of work.

54. That as a result of the Defendants' actions Plaintiff WORTHAM sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

55. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff WORTHAM as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

57. Defendants having no lawful authority to arrest Plaintiff WORTHAM, did, nevertheless, unlawfully arrest Plaintiff WORTHAM with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff WORTHAM is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

58. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. Defendants conspired to violate Plaintiff WORTHAM's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff WORTHAM is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff WORTHAM to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff WORTHAM by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff WORTHAM. Plaintiff WORTHAM is thus entitled to compensatory and exemplary damages.

62. That during the pendency of the case, Defendants maliciously prosecuted WORTHAM by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. WORTHAM is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. At all times pertinent hereto, CASE, O'BRIEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

65. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CASE, O'BRIEN and DOES committed within the scope of their employment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

66. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff WORTHAM. Plaintiff WORTHAM is thus entitled to compensatory exemplary damages.

68. That City of New York and New York City Police Department were aware that CASE was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ CASE.

69. That City of New York and New York City Police Department were aware that O'BRIEN was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ O'BRIEN.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

70. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 69, as if more fully stated herein at length.

71. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff WORTHAM.

72. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff WORTHAM.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION DEFENDANTS

73. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 72. as if more fully stated herein at length.

74. That Defendants acted with actual malice toward HALSEY and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the HALSEY.

75. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

76. That as a result of the actions by Defendants, HALSEY was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

77. That as a result of the Defendants' actions, HALSEY has been unable to sleep.

78. That as a result of the Defendants' actions, HALSEY was forced to miss multiple days of work.

79. That as a result of the Defendants' actions HALSEY sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS

80. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 81, as if more fully stated herein at length.

81. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of HALSEY as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

82. Defendants having no lawful authority to arrest HALSEY, did, nevertheless, unlawfully arrest HALSEY with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus HALSEY is entitled to both compensatory and exemplary damages.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

83. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 84, as if more fully stated herein at length.

84. Defendants conspired to violate HALSEY's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus HALSEY is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AGAINST DEFENDANTS

85. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

86. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused HALSEY to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of HALSEY by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of HALSEY. HALSEY is thus entitled to compensatory and exemplary damages.

87. That during the pendency of the case, Defendants maliciously prosecuted HALSEY by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. HALSEY is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

88. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 87, as if more fully stated herein at length.

89. At all times pertinent hereto, CASE, O'BRIEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

90. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CASE, O'BRIEN and DOES committed within the scope of their employment.

**AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION AS AGAINST CITY OF
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

91. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 90, as if more fully stated herein at length.

92. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including HALSEY. HALSEY is thus entitled to compensatory exemplary damages.

93. That City of New York and New York City Police Department were aware that CASE was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ CASE.

94. That City of New York and New York City Police Department were aware that O'BRIEN was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ O'BRIEN.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

95. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 94, as if more fully stated herein at length.

96. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of HALSEY.

97. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of HALSEY.

AS AND FOR AN TWENTY-NINTH CAUSE OF ACTION DEFENDANTS

98. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 97 as if more fully stated herein at length.

99. That Defendants acted with actual malice toward BRADLEY and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the BRADLEY.

100. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

101. That as a result of the actions by Defendants, BRADLEY was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

102. That as a result of the Defendants' actions, BRADLEY has been unable to sleep.

103. That as a result of the Defendants' actions, BRADLEY was forced to miss multiple days of work.

104. That as a result of the Defendants' actions BRADLEY sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTIETH CAUSE OF ACTION AGAINST DEFENDANTS

105. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 104, as if more fully stated herein at length.

106. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of BRADLEY as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

107. Defendants having no lawful authority to arrest BRADLEY, did, nevertheless, unlawfully arrest BRADLEY with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus BRADLEY is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION AGAINST DEFENDANTS

108. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 107, as if more fully stated herein at length.

109. Defendants conspired to violate BRADLEY's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution,

for which Defendants are individually liable. Thus BRADLEY is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION AGAINST DEFENDANTS

110. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 109, as if more fully stated herein at length.

111. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused BRADLEY to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of BRADLEY by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of BRADLEY. BRADLEY is thus entitled to compensatory and exemplary damages.

112. That during the pendency of the case, Defendants maliciously prosecuted BRADLEY by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. BRADLEY is thus entitled to compensatory and exemplary damages.

**AS AND FOR A THIRTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

113. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 112, as if more fully stated herein at length.

114. At all times pertinent hereto, CASE, O'BRIEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

115. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CASE, O'BRIEN and DOES committed within the scope of their employment.

AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

116. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 115, as if more fully stated herein at length.

117. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including BRADLEY. BRADLEY is thus entitled to compensatory exemplary damages.

118. That City of New York and New York City Police Department were aware that CASE was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ CASE.

119. That City of New York and New York City Police Department were aware that O'BRIEN was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ O'BRIEN.

AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

120. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 119, as if more fully stated herein at length.

121. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of BRADLEY. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of BRADLEY.

AS AND FOR AN THIRTY-SIXTH CAUSE OF ACTION DEFENDANTS

122. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 121 as if more fully stated herein at length.

123. That Defendants acted with actual malice toward LEDBETTER and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the LEDBETTER.

124. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

125. That as a result of the actions by Defendants, LEDBETTER was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

126. That as a result of the Defendants' actions, LEDBETTER has been unable to sleep.

127. That as a result of the Defendants' actions, LEDBETTER was forced to miss multiple days of work.

128. That as a result of the Defendants' actions LEDBETTER sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTY-SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

129. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 128, as if more fully stated herein at length.

130. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of LEDBETTER as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

131. Defendants having no lawful authority to arrest LEDBETTER, did, nevertheless, unlawfully arrest LEDBETTER with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus LEDBETTER is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

132. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 131, as if more fully stated herein at length.

133. Defendants conspired to violate LEDBETTER's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus LEDBETTER is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-NINTH CAUSE OF ACTION AGAINST DEFENDANTS

134. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 133, as if more fully stated herein at length.

135. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused LEDBETTER to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of LEDBETTER by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of LEDBETTER. LEDBETTER is thus entitled to compensatory and exemplary damages.

136. That during the pendency of the case, Defendants maliciously prosecuted LEDBETTER by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. LEDBETTER is thus entitled to compensatory and exemplary damages.

AS AND FOR A FORTIETH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

137. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 136, as if more fully stated herein at length.

138. At all times pertinent hereto, CASE, O'BRIEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

139. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CASE, O'BRIEN and DOES committed within the scope of their employment.

AS AND FOR A FORTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

140. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 139, as if more fully stated herein at length.

141. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including LEDBETTER. LEDBETTER is thus entitled to compensatory exemplary damages.

142. That City of New York and New York City Police Department were aware that CASE was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ CASE.

143. That City of New York and New York City Police Department were aware that O'BRIEN was the subject of multiple Civilian Complaint Review Board complaints and despite such, they continued to employ O'BRIEN.

AS AND FOR A FORTY-SECOND CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

144. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 143, as if more fully stated herein at length.

145. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of LEDBETTER. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of LEDBETTER.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the twenty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twenty-sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twenty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-ninth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the thirtieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-first cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the thirty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the thirty-fifth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the thirty-sixth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the thirty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-eighth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

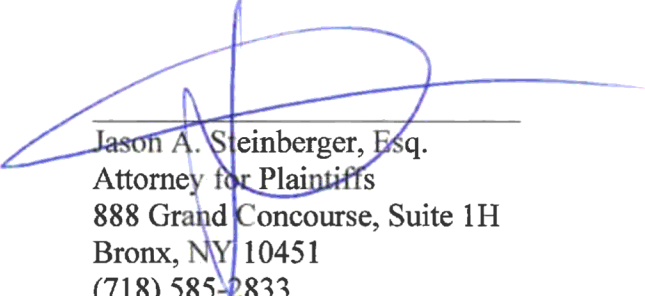
On the thirty-ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fortieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the forty-first cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the forty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

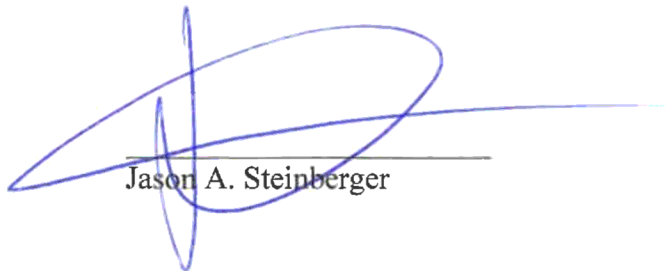


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(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: April 29, 2021



Jason A. Steinberger